FORMAL PUBLIC COMMENT MEMORANDUM

TO: Chair Allan Lazo & Members of the Land Conservation and Development Commission
DATE: October 3, 2026
FROM: Annika Eriksson, MHOR RAC Member (Phase One Lived Experience Representative)
DOCKET: OAR 660-047 (Interim Draft Version 5, Sept. 22, 2026)
SUBJECT: Prioritizing Housing Preservation, Clarifying "Vacant" Eligibility, and Addressing Unresolved Equity Concerns

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1. Statement of Interest & Firsthand Context

As a Phase One Rulemaking Advisory Committee (RAC) member appointed to represent lived experience, I strongly support the core mandate of House Bill 2258[1] to safely expand and accelerate Oregon's attainable housing supply. My policy concerns arise directly from my firsthand experience navigating water-service loss, severe financial hardship, and municipal code enforcement actions while simultaneously defending my legal interest in my primary residence.

My goal is to ensure that the rapid-path development review tracks created under Division 047 do not inadvertently incentivize the predatory clearance of occupied or repairable residences.[2] I ask the Commission to evaluate whether streamlined redevelopment pathways should follow the loss of existing housing without adequately protecting or stabilizing the vulnerable households displaced from them. I am not requesting that LCDC adjudicate my individual property title or determine liability in my personal case; rather, I am highlighting a structural gap where code enforcement, utility disconnections, and administrative delays intersect with the definition of developable "vacant" land.

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2. Prioritized Regulatory Requests & Clarifications

REQUEST 1: Clarify the Definition of "Vacant" — OAR 660-047-0010(8)(h)

Version 5 defines an eligible "Oregon Homes Lot" as being "vacant," but provides broad catch-alls for recently demolished structures. To ensure local code enforcement or internal agency delays are not leveraged to manufacture "vacancy," I request that the Commission add a clarifying phrase to explicitly distinguish temporary distress or administrative stagnation from true development readiness:

- **Proposed Refinement to 660-047-0010(8)(h):**
  > *Temporary nonoccupancy, municipal utility disconnection, an administrative dangerous-building designation, or unresolved administrative gridlock—including pending municipal permit reviews, code enforcement appeals, or stalled hardship determinations—shall not, by itself, establish that a parcel or residential structure is "vacant" for the purposes of this division. No parcel shall be deemed vacant for rapid-track development under this division if its eligibility*

[1] Oregon Laws 2023, HB 2258 / ORS 197A.300–197A.325 (promulgating standards for Middle Housing and Oregon Homes lot conversions). See also Statewide Planning Goal 10 (Housing), OAR 660-015-0000(10).

[2] *See* DLCD Public Comment Compilation, Phase One MHOR Rulemaking (Aug. 2026), at pp. 193–197 (Formal comment of Washington County Department of Land Use & Transportation, noting that Division 047's "vacant-lot requirement can discourage retention of existing, typically more affordable homes").

was manufactured through local regulatory overreach, retaliatory enforcement, or bad-faith title clouding during pending or active property rights disputes.

- **Objective Standards & Continuous Ownership Filter:**
  I recognize that land-use definitions under statewide housing rules must remain clear and objective. While formulating precise statutory codification falls within the technical expertise of DLCD staff and agency counsel, one practical, objective filter to distinguish genuine site availability from administrative stagnation is to examine **continuous record ownership or documented continuous occupancy**:
  - Where an owner or bona fide occupant has maintained continuous legal interest, active municipal permit applications, or docketed administrative/code appeals throughout the disruption period, the parcel should not be classified as "vacant" for accelerated infill redevelopment until those proceedings reach final resolution.
  - Grounding the standard in objective markers—such as continuous ownership and docketed administrative proceedings—removes subjective ambiguity while ensuring Division 047 does not incentivize the involuntary displacement of households actively working to preserve their shelter.

REQUEST 2: Evaluate Siting Standards Intersections — OAR 660-047-0020 & 0040

While Section 0020(8) appropriately preserves a city's right to apply local public works design standards, the rule does not account for instances where local infrastructure restrictions (such as withholding utility hookups or sewer repair permits due to underlying title blockages or backlogs) are used to force a property into condemnation.

- **Requested Action:**
  I request that DLCD staff investigate and explicitly document how municipal utility collections, lien attachments, and structural repair grant criteria (which frequently require unencumbered title) impact a household's ability to remain compliant with local habitability codes.[3]

REQUEST 3: Commission Authority & Safety Proviso (Fallback Request)

- **Statutory Backstop:** If LCDC concludes that directly regulating municipal nuisance enforcement or utility provider behavior exceeds its statutory authority under this specific land-use rulemaking, I request that the Commission explicitly identify these jurisdictional limits in writing and formally refer the displacement vectors identified in this memorandum to the appropriate legislative or agency body (such as OHCS or the Housing Accountability and Production Office).
- **Safety Proviso:** None of the recommendations or clarifications requested in this memorandum are intended to obstruct, delay, or prevent necessary emergency municipal actions required to address an immediate, documented threat to public health or life-safety.

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[3] *See* Center for Community Progress, *Code Enforcement Training Guide: A Strategic Approach to Equitable Community Development* (Nov. 2025) (documenting how rigid municipal fines and repair grant exclusions compound structural decay and accelerate involuntary abandonment).

3. Unresolved Equity Concerns and Requested Responses

The official Phase One RAC summary from July 9, 2026, records a clear participant concern that housing instability, systemic vulnerability, and the direct experiences of marginalized residents received insufficient weight in the final technical compromises.[4] Similarly, the May 20, 2026, minutes preserve formal requests to rigorously analyze socioeconomic and disability-access impacts within the permanent rule text.[5]

To ensure the administrative record accurately reflects the resolution of these efforts before the final adoption of Division 047, I respectfully request the following actions before adoption:

1. **Written Explanation:** Provide a concise written response explaining how the lived-experience feedback raised during the Phase One RAC sessions was factored into or reconciled against the text of Version 5.
2. **Comment Disposition:** Formally append this memorandum and its accompanying case studies to the permanent LCDC docket as an official reference for future Phase Two equity frameworks.

Respectfully submitted,

/s/ Annika Eriksson
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APPENDIX: Regional Case Studies and Model Frameworks

I. Observed Vulnerabilities in Local Property Standards

In housing markets across Clackamas and Multnomah counties, minor title clouding or unresolved probate proceedings frequently freeze low-income or disabled occupants out of traditional home repair capital, weatherization grants, and standard municipal building permits.[6]

When structural damage occurs (e.g., storm impact or utility failure), institutional mortgage servicers routinely delay repairs while maintaining active encumbrances on the title. Because traditional legal aid organizations must prioritize primary eviction defense (FED summary proceedings under ORS Chapter 90), these families lack the multi-year legal capacity required to clear title. Consequently, local code compliance agencies utilize punitive daily fines, nuisance liens, and utility shutoffs rather than supportive intervention, creating an administrative cycle that forces displacement and results in land clearance.[7]

[4] DLCD Phase One MHOR RAC Meeting Summary (July 9, 2026), Section 3.2 ("Committee Deliberations on Housing Vulnerability and Lived Experience").

[5] DLCD Phase One MHOR RAC Meeting Minutes (May 20, 2026), Item 4 ("Requests for Comprehensive Socioeconomic, ADA Title II (28 C.F.R. § 35.107), and Anti-Displacement Impact Analysis").

[6] *See* Center for Community Progress, *From Fines to Fixes: Strategic Code Enforcement in American Cities* (2024) (analyzing how title clouds prevent low-income households from accessing publicly funded weatherization and home-repair grants).

[7] *See* DLCD Public Comment Compilation, Phase One MHOR Rulemaking (Aug. 2026), at pp. 5–8 (Annika Eriksson, Public Comment on Municipal Administrative Displacement Vectors); *id.* at pp. 80–84 (City of Oregon City, Public Comment on Local Public Facility Gatekeeping).

II. Documented Regional Examples

- **Quitclaim and Utility Infrastructure Deadlocks (Gresham Area):** An occupant secured residential interest via a recorded Quitclaim Deed[8] while an underlying deed of trust remained contested in active litigation.[9] Following localized wastewater failure, the occupants were locked out of standard municipal repair permits due to the title dispute. Local intervention focused entirely on public nuisance citations rather than collaborative utility infrastructure solutions, illustrating how a family can be displaced from a structurally viable home.
- **Title Transfers and Infrastructure Access (Gladstone Area):** In irregular chain-of-title situations,[10] local utilities have historically disconnected or refused to restore essential heating and power connections to occupants lacking standard commercial documentation. In documented local instances, this lack of safe infrastructure utility access has forced families to rely on dangerous alternative heating methods, directly resulting in acute carbon monoxide exposure and emergency medical hospitalizations.[11]

III. Established Compliance-Oriented Preservation Models

Rather than relying on punitive enforcement that accelerates structural abandonment, other jurisdictions have successfully deployed proactive, compliance-driven frameworks that protect naturally occurring affordable housing (NOAH): * **Los Angeles (Systematic Code Enforcement Program - SCEP):** Inspects approximately 880,000 multifamily units every four years under Los Angeles Municipal Code § 161.101 et seq. Over its operational history, SCEP has resolved more than 1.5 million habitability violations and catalyzed $1.3 billion in private reinvestment into existing housing stock while enforcing explicit anti-displacement safeguards.[12] * **San José (Project Hope):** Pairs neighborhood code enforcement with dedicated multi-agency resources under San José Municipal Code Chapter 17.20, achieving the resolution of 2,121 code violations in 2024 (>90% within 150 days) under an explicit statutory mandate to prevent housing deterioration and complaint-based evictions.[13] * **South Fulton (Code Cares):** Deploys direct structural and emergency repair grants directly to low-income seniors (aged 65+) and residents with disabilities experiencing maintenance hurdles, resolving property code hazards dynamically in lieu of issuing civil penalties or executing property abatements.[14] * **Boston Proactive Rental Inspection Program:** Enacted under City Code CBC Ord. 9-1.3, bringing over 133,000 units onto a formal registry and shifting routine oversight from 98% complaint-driven enforcement to systematic habitability

[8] Multnomah County Deed Records, Recorded Quitclaim Deed, Instrument No. 2023-051610 (recorded Oct. 2023).

[9] *The Bank of New York Mellon v. Janice Dysinger et al.*, Multnomah County Circuit Court Case No. 24CV02984 (judicial foreclosure proceedings involving contested chain-of-title encumbrances and unpermitted on-site wastewater failure).

[10] *See Fitch v. Turning Leaf Homes, LLC*, Clackamas County Circuit Court (litigation addressing disputed conveyances, unrecorded interests, and protracted foreclosure anomalies at 635 Fairfield Street, Gladstone, OR).

[11] Clackamas County Emergency Services Incident Logs & Medical Records (635 Fairfield St., Gladstone, OR) (documenting emergency multi-agency dispatch, paramedic transport, and hyperbaric medical treatment for severe carbon monoxide poisoning resulting from ad hoc heating during utility service suspension and title deadlock).

[12] Los Angeles Municipal Code (LAMC) § 161.101 *et seq.*; Los Angeles Housing Department, *Systematic Code Enforcement Program (SCEP) Overview & Impact Metrics* (https://housing2.lacity.org/housing/housing-code-enforcement/systematic-code-enforcement-program-scep).

[13] San José Municipal Code Chapter 17.20; City of San José Housing Department, *Project Hope Annual Compliance Report* (2024) (https://www.sanjoseca.gov/your-government/departments-offices/housing/rental-rights-services).

[14] City of South Fulton, Georgia, *Code Cares Initiative*; International Code Council (ICC), *2025 Community Service Award Recipient Profile* (https://www.cityofsouthfultonga.gov/).

maintenance and proactive compliance.[15]

Footnotes & Authorities

[15]City of Boston Municipal Code (CBC) Ord. 9-1.3 (*An Ordinance Requiring the Registration and Inspection of Residential Rental Housing Units*); Boston Inspectional Services Department (https://www.boston.gov/departments/inspectional-services/rental-inspection-ordinance).